



File No: EXP202310598

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 15, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against OPTIME 2016 SL (hereinafter, the respondent), through the Agreement that is transcribed:

<<

File No: EXP202310598

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection, and based on the following

FACTS

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the regulations within the competencies of the Spanish Agency for Data Protection were noted, leading to the initiation of actions under file number EXP202209817. The complaint was admitted for processing on November 2, 2022.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the supervisory authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD hereinafter).

In the framework of the investigative actions, three requests for information were sent to OPTIME 2016, S.L., with NIF B90280546, regarding the complaint indicated in the first section, requiring that within ten working days it submit to this Agency the information and documentation specified therein. These requests were registered for dispatch on May 25, June 5, and June 26, 2023.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/7

THIRD: The requests for information were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). The first of them was not collected by the respondent within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on June 5, 2023, as evidenced by the acknowledgment of receipt in the file. The other two requests were collected by the respondent on June 5 and June 27, 2023, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, the respondent has not submitted any response to this Spanish Agency for Data Protection.

FIFTH: According to the report obtained from the AXESOR tool, the entity OPTIME 2016 SL is an SME (Microenterprise), established in 2016, with a turnover of 1,938,272 euros in 2021.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data

Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the respondent has not provided the information requested by the Spanish Agency for Data Protection.

With the conduct indicated by the respondent, the investigative power that Article 58.1 of the GDPR confers on the supervisory authorities, in this case, the AEPD, has been obstructed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

Therefore, the facts described in the "Facts" section are deemed to constitute an infringement, attributable to the respondent party, for violation of Article 58.1 of the GDPR, which provides that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of their functions; b) to carry out investigations in the form of data protection audits; c) to conduct a review of the certifications issued under Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and all information necessary for the exercise of their functions; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or of the Member States."

III

Classification and Qualification of the Infringement

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the facts presented could constitute an infringement, attributable to the respondent party.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "not providing access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"ñ) Not providing access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.

o) Resistance or obstruction to the exercise of the inspection function by the competent data protection authority."

IV

Proposal for Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned

Article 83.2 GDPR.

In light of the facts presented, without prejudice to what may result from the instruction of the procedure, it is considered that a sanction should be imposed on the respondent party for the violation of Article 58.1 of the GDPR classified under Article 83.5.e) of the GDPR. The sanction that would correspond to be imposed is an administrative fine of €500.00.

In the initial assessment, it is noted that no mitigating or aggravating factors apply.

Therefore, in light of the above,

By the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against OPTIME 2016, S.L., with NIF B90280546, for the infringement of Article 58.1 of the GDPR, classified under Article 83.5.e) of the aforementioned GDPR.

SECOND: TO ORDER OPTIME 2016, S.L. to provide, in accordance with the investigative power set forth in Article 58.1.a) of the GDPR, the information requested within ten working days, as required in the requests made in the framework of the proceedings with file number EXP202209817 and referred to in the description of the facts of this initiation agreement.

THIRD: TO APPOINT A.A.A. as the instructor and B.B.B. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the information requests issued by the General Subdirectorate of Data Inspection in the framework of the proceedings with file number EXP202209817 and the proof of notification thereof.

FIFTH: THAT for the purposes provided in Article 64.2.b) of the LPACAP, the sanction that may correspond would be, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of that regulation, an administrative fine of €500.00, without prejudice to what may result from the instruction.

SIXTH: TO NOTIFY this agreement to OPTIME 2016, S.L., with NIF B90280546, granting it a hearing period of ten working days to submit any allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made within the stipulated period, this initiation agreement may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/7

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will lapse, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 400.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 400.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 300.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (400.00 euros or 300.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, you are advised that, henceforth, notifications sent to you will be made exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

972-100723

Mar España Martí

Director of the Spanish Agency for Data Protection

>>

SECOND: On October 11, 2023, the respondent has proceeded to pay the sanction in the amount of 300 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/7

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary

sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202310598, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to OPTIME 2016 SL.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es